

Calendar Line 2

Case Name: William Wortz v. Lea Schlemmer et al.

Case No.: 24CV447855

This is an action for breach of contract brought by plaintiff William Wortz (Plaintiff) against defendant Lea Schlemmer, trustee of the Katherin E. Mazzola Revocable Living Trust dated June 30, 1995 (Defendant).

The operative first amended complaint (FAC), filed in October 2024, alleges a single cause of action for breach of contract. The FAC alleges that Plaintiff entered into an oral contract with Kathryn Mazzola and Frank Mazzola. (FAC, ¶ 13.) Plaintiff would receive a one-quarter interest in the Mazzolas' estate. (*Ibid.*) That included a one-quarter interest in the Mazzolas' primary residence that would remain in the Mazzolas' estate until their passing. (*Ibid.*) Plaintiff was to receive the property interest in return for his past and ongoing relationship with the Mazzolas, and for the services he had provided. (*Ibid.*) The terms of the agreement were memorialized in a trust amendment Kathryn Mazzola executed in November 2019. (*Id.* at ¶ 14.) Through a December 2020 trust amendment, Kathryn Mazzola revoked the agreement with Plaintiff and instead bequeathed the property interest to Defendant. Defendant was the Mazzolas' attorney-in-fact. (*Id.* at ¶¶ 10, 15.) The FAC alleges the December 2020 trust amendment breached the oral contract plaintiff entered with the Mazzolas to receive the property interest. (*Id.* ¶¶ 15-18.) The Mazzolas have since passed away. (*Id.* at ¶ 5.) The November 2019 trust amendment and December 2020 trust amendment are attached to the FAC as Exhibits A and B, respectively.

At issue is Plaintiff's motion for leave to amend the FAC, opposed by Defendant. Plaintiff seeks to add a second cause of action for interference with expected inheritance.

LEGAL STANDARD FOR MOTIONS FOR LEAVE TO AMEND

A trial court has discretion to "allow a party to amend any pleading." (Code Civ. Proc., § 473, subd. (a)(1); *Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.) Leave to amend can be denied if the party seeking amendment unnecessarily delayed the motion, or if the delay prejudiced the opposing party. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490.)

DISCUSSION

Plaintiff seeks leave to amend to add a tort cause of action for interference with expected inheritance. Defendant opposes the motion, contending that (1) Defendant would be prejudiced by the proposed second amended complaint (SAC); (2) Plaintiff unreasonably delayed seeking leave to amend; and (3) the proposed SAC fails to allege sufficient facts for an interference with expected inheritance cause of action.

No Prejudice

Defendant argues that she would be prejudiced by the amendment because additional discovery on the new cause of action would need to be conducted. (Opposition, at p. 4:13-17.)

Prejudice exists where the amendment would require delaying the trial, resulting in loss of critical evidence, or would add costs of preparation and an increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.) “Prejudice will not be presumed but must be affirmatively demonstrated through production of evidence.” (*L&S Framing, Inc. v. Occupational Safety & Health Appeals Bd.* (2023) 93 Cal.App.5th 995, 1012.)

No trial date has been set. Plaintiff’s counsel declares discovery is ongoing, and no depositions have been taken. (Roberts Decl., filed 2/5/2026, ¶ 6.) Leave to amend will not substantially prejudice Defendant. Even though Defendant may need to conduct additional discovery on the new cause of action, there is adequate time to do so.

Timeliness

Defendant argues that Plaintiff unduly delayed bringing this motion because Plaintiff already knew and alleged the facts supporting the proposed interference with expected inheritance claim in his FAC. (Opposition, p. 3:20-22.)

In evaluating delay, a court must consider whether the party failed to diligently move to amend after discovering facts supporting the amendment. (*Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435, 1448.) Leave to amend is liberally granted where discovery and investigation lead to facts justifying a timely amendment. (*Mabie v. Hyatt* (1998) 61 Cal.App.4th 581, 596.)

Plaintiff’s motion argues Defendant’s November 19, 2025 document production revealed the facts supporting amendment. (Motion, p. 3:9-13.) Plaintiff moved to amend in February 2026 after Defendant refused to stipulate to the amendment. (Roberts Decl., ¶ 7.) The FAC alleges minimal facts concerning Defendant’s role in taking over the Mazzolas’ financial affairs. (FAC, ¶ 10.) Plaintiff may refine and expand his legal theories based on information uncovered through discovery. (See *Honig v. Financial Corp. of America* (1992) 6 Cal.App.4th 960, 965 [“If the original pleading has not framed the issues in an articulate and precise manner, a plaintiff should not be precluded from having a trial on the merits.”])

Sufficiency of the Allegations

Defendant argues that because the interference with expected inheritance cause of action is inadequately pleaded, Plaintiff’s motion for leave to amend must be denied. (Opposition, p. 4:20.) That argument can be addressed through a demurrer or other pleading challenge. (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 [“even if the proposed legal theory is a novel one, ‘the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.’ ”].)

CONCLUSION

Plaintiff’s motion for leave to amend is GRANTED.

Plaintiff must separately file the proposed second amended complaint no later than September 1, 2026.

The court will prepare the order.

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Calendar Line 3

Case Name: Carlos Velasquez v. Ford Motor Company, et al.

Case No.: 24CV453911

This is an action under the Song-Beverly Consumer Warranty Act brought by plaintiff Carlos Velasquez (Plaintiff) against defendants Ford Motor Company (Ford) and Aaron Ford of Lake Elsinore.

Plaintiff filed the original and still operative complaint in December 2024. The Complaint alleges Plaintiff purchased a new 2023 Ford Maverick (Subject Vehicle) under warranty in February 2023. (Complaint, ¶ 7.) The complaint alleges on information and belief that Ford knew that vehicles equipped with the same 2.5L engine as the Subject Vehicle suffered “from one or more defects that can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine.” (*Id.* at ¶ 53.)

The Complaint alleges six causes of action: (1) violation of Civil Code section 1793.2, subdivision (d) (against Ford only); (2) violation of Civil Code section 1793.2, subdivision (b) (against Ford only); (3) violation of Civil Code section 1793.2, subdivision (a)(3) (against Ford only); (4) breach of the implied warranty of merchantability (against Ford only); (5) negligent repair (against Aaron Ford of Lake Elsinore only); and (6) fraudulent inducement—concealment (against Ford only). A copy of the warranty is attached as exhibit A to the complaint. Trial is set for September 28, 2026.

At issue is Ford’s motion for summary adjudication of Plaintiff’s sixth cause of action for fraudulent inducement—concealment. No timely opposition was filed.

LEGAL STANDARD—SUMMARY ADJUDICATION

The pleadings limit the issues presented for summary judgment or summary adjudication. Such a motion may not be granted or denied based on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258; *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73.) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); *McClasky v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975; *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action.” “The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72, internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850.) While the same standards of admissibility govern both

sides' supporting evidence, the opposition evidence is liberally construed while the moving party's evidence is strictly construed. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037.)

A reply "shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Code Civ. Proc., § 437c, subd. (b)(4); *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

DISCUSSION

Ford moves for summary adjudication of Plaintiff's sixth cause of action for fraudulent inducement—concealment. Ford argues Plaintiff has no evidence to support findings: (1) that the Subject Vehicle was manufactured with an engine defect; or (2) that Ford knew of concealed the defect. (Notice of Motion and Motion, p. 2:8-11.)

To obtain summary adjudication on the basis that a plaintiff has no evidence to establish an essential element of a claim, the moving party must support the motion with discovery admissions or other admissible evidence demonstrating that "plaintiff does not possess, and cannot reasonably obtain, needed evidence." (*Aguilar, supra*, 25 Cal.4th at pp. 854-855.) "[A] defendant cannot simply 'argue' that a plaintiff lacks sufficient evidence to establish [a required element of his or her claim]; the defendant must make an affirmative 'showing' that the plaintiff *cannot* do so." (*Andrews v. Foster Wheeler LLC* (2006) 138 Cal.App.4th 96, 103.) When relying on "factually devoid" discovery responses, the defendant must show that "discovery was sufficiently comprehensive, and plaintiffs' responses so devoid of facts, as to lead to the inference that plaintiffs could not prove [a required element of their claim] upon a stringent review of the direct, circumstantial and inferential evidence contained in their [discovery responses]." (*Id.* at p. 107, citing *Scheiding v. Dinwiddie Construction Co.* (1999) 69 Cal.App.4th 64, 83.)

Ford propounded special interrogatories asking Plaintiff to "state all facts", "identify all persons", and "identify all documents" supporting their fraudulent concealment cause of action. (Ford's undisputed material facts (UMF), Nos. 6, 8.) Plaintiff responded by referring to the Complaint and his 31-page document production. (UMF, Nos. 9-12.) Plaintiff's reference to the Complaint is insufficient. (See *Andrews, supra*, 138 Cal.App.4th at p. 107 ["If plaintiffs respond to comprehensive interrogatories seeking all known facts with boilerplate answers that restate their allegations...the burden of production will almost certainly be shifted to them once defendants move for summary judgment and properly present plaintiffs' factually devoid discovery responses."].)

The 31-page document production consists of the Retail Installment Sales Contract; repair orders for the Subject Vehicle; Plaintiff's insurance card and registration; monthly payment information; recall notices; and the Subject Vehicle's window sticker showing its price, features, and gas mileage. (UMF, No. 12.) The recall notices were issued after Plaintiff purchased the Subject Vehicle. (Hollenbeck Decl., Ex. D, pp. 28-30.) Neither Plaintiff's discovery responses nor the document production demonstrate that Ford knew of any engine defect before Plaintiff purchased the subject vehicle.

Because Plaintiff did not file any opposition to the motion, he has not raised any triable issue of material fact about Ford's knowledge of an engine defect. Ford is therefore entitled summary adjudication of the sixth cause of action. The court does not reach Ford's alternative argument that Plaintiff has no evidence that the Subject Vehicle was manufactured with an engine defect.

CONCLUSION

Ford's motion for summary adjudication of Plaintiff's sixth cause of action for fraudulent inducement—concealment is GRANTED.

The court will prepare the order.

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Calendar Line 6

Case Name: Hudson Insurance Company v. USA Auto Dealer, Inc. et al.

Case No.: 25CV460803

This is a limited civil action for breach of written contract brought by plaintiff Hudson Insurance Company (Hudson) against defendants USA Auto Dealer, Inc. and Adel Atiyeh Abdo (Defendants).

The original and still operative complaint was filed in March 2025. It alleges a single cause of action for breach of written contract. A copy of the contract is attached to the complaint as exhibit A. Defendants filed a joint answer to the complaint in May 2025. A short cause trial is set for November 9, 2026.

At issue is a motion for summary judgment brought by Hudson and opposed by Defendants. Hudson did not submit a timely reply.

GENERAL STANDARD FOR SUMMARY JUDGMENT

The pleadings limit the issues presented for summary judgment or summary adjudication. Such a motion may not be granted or denied based on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 (*Nieto*).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); *McCaskey v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975 (*McCaskey*); *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

Where a plaintiff has moved for summary judgment, it has the burden of showing there is no defense to a cause of action. (Code Civ. Proc., § 437c, subd. (a).) That burden can be met if the plaintiff has established each element of the cause of action, entitling it to judgment on that cause of action. It is not part of a plaintiff’s initial burden to disprove affirmative defenses or cross-complaints asserted by a defendant. (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 564-565 If the plaintiff meets this burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (Code Civ. Proc., § 437c, subd. (p)(1); *Professional Collection Consultants v. Lauron* (2017) 8 Cal.App.5th 958, 965.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850.)

While the same standards of admissibility govern both sides’ supporting evidence, the opposition evidence is liberally construed while the moving party’s evidence is strictly construed. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037 (*Yanowitz*).)

A reply shall be served and filed not less than 11 days before the hearing and “shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.” (Code Civ. Proc., § 437c, subd. (b)(4); *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (*Nazir*).)

DISCUSSION

Hudson moves for summary judgment of the sole cause of action “on the ground that there is no defense to the complaint and no triable issue as to any material facts with respect thereto.” (Notice of Motion at p. 2:7-8.)

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186 (*Richman*).) As a general matter, it is “solely a judicial function to interpret a written instrument unless the interpretation turns on the credibility of extrinsic evidence.” (*Consolidated Theatres, Inc. v. Theatrical Stage Employees Union* (1968) 69 Cal.2d 713, 724 *Sierra Vista Regional Medical Center v. Bonta* (2003) 107 Cal.App.4th 237, 245.) The complaint alleges that Hudson “has performed all conditions and promises required by them in accordance with the terms and conditions of the Agreement.” (Complaint, ¶ 10.)

The contract attached to the complaint as exhibit A is a one-page contract titled “Indemnity Agreement.” The agreement is signed by defendant Abdo as both president of defendant USA Auto Dealer, Inc. and as an individual indemnitor. The contract is not signed by Hudson. The beginning of the agreement states that “those who sign below” will be referred to as the Indemnitors and that Hudson will be referred to as the Surety. The Agreement states that in exchange for the Surety issuing a bond (a copy of which is attached to the complaint as exhibit B), the indemnitors among other things agree to “promptly pay on behalf of the Surety, and if the Surety makes a prior payment, to promptly reimburse the Surety for all incurred loss and expense of whatever kind including, but not limited to, investigation costs, interest, court costs, and attorneys’ fees (hereafter, the ‘Loss’) stemming from the Surety either furnishing the Bond or enforcing this Agreement.” (Complaint, Ex. A, “Promises and Agreements,” ¶ 2.) The complaint alleges that contract term was breached. The complaint alleges Hudson is owed \$25,223.91 for claims against the bond that it paid. (See complaint, ¶¶ 5-11.)

The contract also states that the Indemnitors agree to “regard the Loss as proven when the surety provides either originals or photocopies or either claim drafts or payment records kept in the ordinary course of business, including computer printouts as verified by affidavit.” (Complaint, Ex. A, “Promises and Agreements,” ¶ 4.)

Indemnity agreements are strictly construed. (*Crawford v. Weather Shield Mfg., Inc.* (2008) 44 Cal.4th 541, 552.) Indemnity agreements are “construed under the same rules as govern the interpretation of other contracts.” “Effect is to be given to the parties’ mutual intent ([Civ. Code,] § 1636), as ascertained from the contract’s language if it is clear and explicit ([Civ. Code,] § 1638).” “Unless the parties have indicated a special meaning, the contract’s words are to be understood in their ordinary and popular sense. ([Civ. Code,] § 1644.)”

(*Crawford*, at p. 552; see also *Heppler v. J.M. Peters Co.* (1999) 73 Cal.App.4th 1265, 1278 [“Indemnity provisions are to be strictly construed against the indemnitee.”].)

The summary judgment motion is supported by a declaration from Jeff Mortimer, a Claims Specialist with Hudson. He declares he has supervision and control over Hudson’s books and accounts receivable. He states that after the parties entered into the agreement and Hudson issued the surety bond, Hudson “received claims/civil actions under the Bond, and after an investigation of the claims, [Hudson] did in fact pay the claim on the Bond: \$10,000.00 loss and \$15,223.91 to [Hudson’s] counsel for fees incurred, totaling \$25,223.91. To date, Defendants have failed to indemnify [Hudson] the principal balance of \$25,223.91, with unpaid interest at the rate of 10% per annum from August 23, 2023.” (Mortimer Decl. at ¶ 5.) He declares that “[d]emand for payment has been made but Defendants have refused to pay”; that Hudson “performed all conditions required of it pursuant to the terms of the Agreement and Bond”; and that “according to [Hudson’s] records, Defendants did not object to the terms of the Agreement or Bond.” (*Id.* at ¶¶ 7 and 13.) He also states that Hudson seeks “reasonable attorneys’ fees in the sum of \$5,044.00, which represents 20% of the principal balance owed.” (*Id.* at ¶ 15.)

Mortimer declares that three documents are attached to his declaration as exhibits A-C. (See Mortimer Decl. at ¶¶ 3, 4 & 9.) Exhibit A is described as another copy of the contract. Exhibit B is described as another copy of the bond. Exhibit C is described as a copy of a “pay log report” showing Hudson’s record of transactions with Defendants. But there are no exhibits attached to the declaration on file with the court. The Mortimer declaration and the exhibits attached to the complaint (copies of the contract and the bond) are nonetheless sufficient to meet Hudson’s initial burden to establish the existence and breach of the Indemnity Agreement.

When the burden shifts to Defendants, they argue that a triable issue of material fact remains because a condition precedent in the contract has not been satisfied.

“A conditional obligation is one in which ‘the rights or duties of any party thereto depend upon the occurrence of an uncertain event.’” (*JMR Construction Corp. v. Environmental Assessment and Remediation Management, Inc.* (2015) 243 Cal.App.4th 571, 593 (*JMR Construction*), citing Civ. Code, § 1434.) “[P]arties may expressly agree that a right or duty is conditional upon the occurrence or nonoccurrence of an act or event.” (*Ibid.*, citations omitted.) “[A] condition precedent is either an act of a party that must be performed or an uncertain event that must happen before the contractual right accrues or the contractual duty arises.” (*Ibid.*, citations omitted; see also Civ. Code, § 1436.) Whether a condition precedent exists generally depends on the intent of the parties as determined from the words used in the contract. (*Id.* at pp. 593-594.) Conditions precedent are disfavored by the law and are to be strictly construed against the party seeking to avail itself of one. (*Id.* at p. 594.) A term of an agreement should not be construed as a condition precedent unless it is evident from clear, unambiguous language in the contract. (*Ibid.*) “A party’s failure to perform a condition precedent will preclude an action for breach of contract.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 592.)

“In pleading the performance of conditions precedent in a contract, it is not necessary to state the facts showing such performance, but it may be stated generally that the party duly performed all the conditions on his part, and if such allegation be controverted, the party

pleading must establish, on the trial, the facts showing such performance.” (Code Civ. Proc., § 457; *Gordon Bldg. Corp. v. Gibraltar Sav. & Loan Ass’n* (1966) 247 Cal.App.2d 1, 6.)

Defendants contend that paragraph 4 of the Agreement, stating that defendants agree to regard “Loss” as proven “when the surety provides either originals or photocopies or either claim drafts or payment records kept in the ordinary course of business, including computer printouts as verified by affidavit,” is a condition precedent to their responsibility to pay the amount claimed as a “Loss.” (See opposition at pp. 5:18-6:4.)

This argument is supported by a declaration from Muhammad Akawi, CEO of defendant USA Auto Dealer, Inc. (referred to as “Dealer” in the declaration). Akawi does not dispute that the parties entered into the Agreement. (Akawi decl. at ¶ 3.) But he declares, “At no time between April 14, 2021 and the filing of this lawsuit did Dealer receive from Hudson any demand for reimbursement of any amount Hudson claims to have paid in furnishing the Bond. At no time prior to the filing of this lawsuit did Dealer receive from Hudson any claim drafts or payment records, whether originals or photocopies, concerning any payment on the Bond or concerning any of the losses or expenses Hudson now claims. I have reviewed Dealer’s records of correspondence received from Hudson and have located no such documents.” (*Id.*, ¶¶ 14-15.)

Defendants frame the question of whether there is a condition precedent as an issue that must be resolved by the finder of fact. But because it presents an issue of contract interpretation, it is a question of law for the court. Though conditions precedent are disfavored, indemnity agreements in the non-insurance context must be strictly construed against the indemnitee (here Hudson). And the court must liberally construe the evidence in favor of the party opposing summary judgment. The court finds that Defendants’ obligation in paragraph 2 of the Agreement “[t]o promptly pay” or reimburse Hudson for any “Loss” that stems “from the “Surety” and to accept a “Loss” as proven is reasonably conditioned on the Surety (Hudson) providing Defendants with documentation: “either originals or photocopies or either claim drafts or payment records kept in the ordinary course of business, including computer printouts as verified by affidavit,” establishing the “Loss” as set forth in paragraph 4 of the Agreement.

The Akawi declaration conflicts with the Mortimer declaration on the question of whether Defendants (or at least USA Auto Dealer, Inc.) were sent any demand for payment or received any documentation establishing a “Loss” under the contract. A triable issue of material fact therefore remains about whether Hudson can show that it fully performed under the contract. Where declarations or testimony conflict on material facts, the court cannot weigh the evidence in ruling on a motion for summary judgment. (*Reid v. Google, Inc.* (2010) 50 Cal.4th 512, 540.) “Typically in summary judgment litigation, equally conflicting evidence requires a trial to resolve the dispute.” (*Kids’ Universe v. In2Labs* (2002) 95 Cal.App.4th 870, 881.)

Hudson’s motion for summary judgment is denied. The court does reach Defendants’ other arguments against summary judgment.

CONCLUSION

Plaintiff Hudson’s motion for summary judgment is denied.

The court will prepare the order.

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Calendar Lines 7 and 8

Case Name: Josselyn Mejia Alvarado v. Jacquelyn Martin

Case No.: 25CV471183

At issue are two motions to compel filed by Plaintiff Josselyn Mejia Alvarado against defendant Jacquelyn Martin: (1) a motion to compel further responses to form interrogatories; and (2) a motion to compel further responses to requests for production. Notice is proper and the motions are opposed by defendant. The contested discovery concerns surveillance of plaintiff in “places open to public view” taken by someone hired by the defense.

The Discovery At Issue

Form interrogatory No. 13.1 asks, “Have you or anyone acting on your behalf conducted surveillance of any individual involved in the incident or any party to this action?” (Capitalization omitted.) It further asks for information about any surveillance conducted, including: the contact information for the individual surveilled; the “time, date, and place of the surveillance”; the contact information for the individual who conducted the surveillance; and the contact information for each person who has the original or a copy of the surveillance. Form interrogatory No. 13.2 asks whether a written report has been prepared related to any surveillance and, if so, for information about the report (including its title; its date; and the contact information for the individual who prepared the report). Defendant objected that the information is protected by the attorney-client privilege and the attorney work product doctrine. Defendant also objected that the interrogatory improperly asked for “rebuttal witness information.” Defendant provided the following substantive responses. To No. 13.1, “Yes. Surveillance of Plaintiff conducted in 2025 in places open to public view around Belmont, California.” To No. 13.2, “Yes. Surveillance Report in 2025.”

Request for production No. 15 asked for a copy of “all photographs of Plaintiff following the incident.” (Capitalization omitted.) Request for production No. 16 asked for a “copy of all sub rosa films taken of Plaintiff as a result of the incident.” (Capitalization omitted.) Defendant objected that the information is protected by the attorney-client privilege and the attorney work product doctrine. The amended responses to Nos. 15 and 16 both state: “Defendant is in possession of films taken as a result of sub rosa investigation conducted on or around August 2025 in placed open to public view around Belmont, California by a consultant retained on behalf of defendant for purposes of investigating and evaluating plaintiff’s claims. Said photographs are privileged and will not be produced.” Defendant did not produce a privilege log.

No Attorney-Client Privilege

The Supreme Court determined in 1962 that surveillance film like the media at issue in this case is not protected by the attorney-client privilege. (*Suezaki v. Superior Court of Santa Clara County* (1962) 58 Cal.2d 166, 177 [“The films are representations of the plaintiff, not of the defendants. If they can be said to be a ‘communication’ in any sense of the word, they represent an unconscious and unintended ‘communication’ from plaintiff.”].) That court also affirmed the trial court’s finding that good cause supported production of the media, namely “a need for the films both in order to protect against surprise, and in order to prepare for examination of the person who took the pictures.” (*Id.* at p. 172.)

Under *Suezaki*, the attorney-client privilege does not protect anything responsive to the form interrogatories and requests for production at issue here. The objection is overruled.

Attorney Work Product Doctrine

Suezaki was decided before the attorney work product doctrine was codified. Absolute work product is any “writing that reflects an attorney’s impressions, conclusions, opinions, or legal research or theories.” (Code Civ. Proc., § 2018.030, subd. (a).) Absolute work product is “not discoverable under any circumstances.” (*Ibid.*) Qualified work product includes “derivative or interpretive material—material created by or derived from an attorney’s work reflecting the attorney’s evaluation of the law or facts.” (*Coito v. Superior Court* (2012) 54 Cal.4th 480, 488.) It can also include work “produced by an attorney’s agents and consultants.” (*Citizens for Ceres v. Superior Court* (2013) 217 Cal.App.4th 889, 911.) Qualified work product is “not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” (Code Civ. Proc., § 2018.030, subd. (b).)

The discovery responses confirm that “films” exist that are responsive to plaintiff’s discovery request. Those films were apparently created “by a consultant retained on behalf of defendant for purposes of investigating and evaluating plaintiff’s claims.” The court has no further evidence describing the films or the circumstances of their creation. Defense counsel’s opposition declarations do not describe the extent of counsel’s supervision over the surveillance consultant. And defendant chose not to produce a privilege log. Defendant’s argument in opposition that the filming “was taken from particular angles and viewpoints as instructed by Defense counsel” is forfeited because it is unsupported by the record.

Based on the information available to the court, none of the requested discovery is entitled to absolute work product protection. None of it reflects an attorney’s impressions, conclusions, opinions, or legal research or theories. At most, the requested discovery is entitled to qualified work product protection. The court finds the information responsive to the interrogatories and any unedited photographs and video media taken of plaintiff must be produced. Plaintiff has no other means of obtaining this information because the media is in defendant’s possession. (*People v. Hunter* (2017) 15 Cal.App.5th 163, 182 [“Establishing that there is no alternative source for the information is an important factor in showing good cause, though it may not be required in every case.”].) And plaintiff will be unfairly prejudiced if the media that defendant confirms exists and indicates may be used for impeachment is not produced. The attorney work product objections are overruled.

Defendant’s remaining arguments against production are unpersuasive. Defendant suggests plaintiff has an alternative source for the information because she “is uniquely familiar with her own activities.” A person’s activities are different than surveillance footage of those activities. Defendant contends disclosing the surveillance media would permit plaintiff’s counsel to coach plaintiff’s testimony and reduce its impeachment value. But the media speaks for itself, and will have potential impeachment value regardless of plaintiff’s testimony. Plaintiff has also apparently already been deposed, meaning any trial testimony will need to be consistent with her deposition testimony that was provided before plaintiff viewed the surveillance media. Defendant cites Evidence Code section 769 and 770. Neither of those sections regard a party’s discovery obligations in a civil case. Defendant’s citations to an appellate opinion about a criminal trial and court rules about expedited jury trials are irrelevant.

Conclusion

The motions to compel are granted. Defendant must answer all questions posed in form interrogatory Nos. 13.1 and 13.2. Defendant must produce all “all photographs of Plaintiff following the incident” (RFP No. 15), and “all sub rosa films taken of Plaintiff as a result of the incident” (RFP No. 16). Regarding the requests for production, only the unedited media must be disclosed. Defendant must produce the discovery no later than September 14, 2026.

The court will prepare the order.

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